

Tentative Rulings for August 5, 2026 Department 5

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 5 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

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Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVMV2511722	TRIVEDI VS CITY OF BEAUMONT	PETITION FOR ORDER RELIEVING PETITIONER FROM GOVERNMENT CLAIMS ACT

Tentative Ruling:

Any claim against a public entity for personal injury must be presented to the governmental entity within six months of accrual of the cause of action. (Gov. Code, § 911.2(a).) If a claim is not filed within the six-month claim presentation period, the claimant may apply to the public entity within a reasonable time, not to exceed one year after accrual, for leave to present a late claim. (Gov. Code, §§ 911.4(a)-(b).) Absent circumstances that would toll the late claim application period, a public entity is generally “powerless to grant relief” if the late claim application is made after the one-year period has expired. (*Hom v. Chico Unified School District* (1967) 254 Cal.App.2d 335, 339.) After denial, the claimant may file a petition for a court order relieving the claimant from the need to comply with Section 945.4. (Gov. Code, § 946.6.) “[T]he burden of showing ‘mistake, inadvertence, surprise or excusable neglect’ is on the moving party.” (Gov. Code, § 946.6(c); *Shaddox v. Melcher* (1969) 270 Cal.App.2d 598, 600.)

To obtain relief, “[t]he mere recital of mistake, inadvertence, surprise or excusable neglect is not sufficient to warrant relief. Relief on grounds of mistake, inadvertence, surprise or excusable neglect is available only on a showing that the claimant’s failure to timely present a claim was reasonable when tested by the objective ‘reasonably prudent person’ standard.” (*N.G. v. County of San Diego* (2020) 59 Cal.App.5th 63, 73-74.) Excusable neglect “is that neglect which might have been the act of a reasonably prudent person under the circumstances.” (*Id.*, at 74.) When relief is sought based on mistake, “it is not every mistake that will excuse a default, the determining factor being the reasonableness of the misconception.” (*Id.*) “A showing of reasonable diligence is required to establish that the petitioner acted as a reasonably prudent person. When excusable neglect is claimed based on ignorance of a fact or failure to act on it, a person seeking relief must show more than just failure to discover a fact until too late; or a simple failure to act. He [or she] must show by a preponderance of the evidence that in the use of *reasonable diligence*, he [or she] could not discover the fact or could not act upon it.” (*Id.*)

Here, Petitioner fails to show excusable neglect. The petition fails to include any supporting declaration, medical records, insurance or other investigation record, or any other evidence identifying when Petitioner learned of the later installed center divider or what he did during the initial 6 months. Petitioner therefore fails to satisfy his burden under section 946.6. Petitioner’s explanations are also insufficient to show mistake, inadvertence, surprise or excusable neglect. There is no showing of the required reasonable diligence to establish that the Petitioner acted as a reasonably prudent person to support relief from the claims presentation requirement.

As to the City's objections to the Petitioner's evidence, the Court sustains the City's objections insofar as petitioner offers the center divider to prove negligence, culpability, or a dangerous condition. The Court overrules the City's objections insofar as the allegation merely explains when petitioner suspected a claim. Yet, that limited use still does not show reasonable diligence on the Petitioner's part.

The petition is denied.

City of Beaumont is ordered to submit a proposed order consistent with this ruling by no later than August 5, 2026 and to provide notice of ruling.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2501056	ARREDONDO VS JURUPA UNIFIED SCHOOL DISTRICT	MOTION TO COMPEL BY LINDA ARREDONDO

Tentative Ruling:

The court has previously continued the hearing on this motion to September 4, 2026, at 8:30 a.m.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2507322	JARA VS COMMUNITY CARE REHAB CENTER, LLC	MOTION TO COMPEL ARBITRATION BY COMMUNITY CARE REHAB CENTER, LLC

Tentative Ruling:

C.C.P., § 1281 provides: "A written agreement to submit to arbitration an existing controversy or a controversy thereafter existing is valid, enforceable, and irrevocable, save upon such grounds as exist for the revocation of any contract."

C.C.P., § 1281.2 provides that upon petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate and a party's refusal to submit to arbitration, the court shall order the parties to arbitrate the controversy if it determines an agreement exists, unless it determines that the right to arbitrate has been waived, that grounds exist for revocation, or that a party to the agreement is also party to a pending litigation arising out of the same facts and there exists a possibility of conflicting rulings on a common issue of fact or law. In such a situation, the court may (1) refuse to enforce the arbitration agreement and order intervention or joinder of all parties in a single action, (2) order intervention or joinder as to all or only certain issues, (3) order

arbitration among the parties who have agreed to arbitration and stay the action pending outcome of arbitration, or (4) stay arbitration pending outcome of the litigation. California Rules of Court, rule 3.1330 provides, “A petition to compel arbitration or to stay proceedings pursuant to Code of Civil Procedure sections 1281.2 and 1281.4 must state, in addition to other required allegations, the provisions of the written agreement and the paragraph that provides for arbitration. The provisions must be stated verbatim or a copy must be physically or electronically attached to the petition and incorporated by reference.”

“ ‘[W]hen a petition to compel arbitration is filed and accompanied by prima facie evidence of a written agreement to arbitrate the controversy, the court itself must determine whether the agreement exists and, if any defense to its enforcement is raised, whether it is enforceable. Because the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence.’ ” (*Hotels Nevada v. L.A. Pacific Center, Inc.* (2006) 144 Cal.App.4th 754, 761, quoting *Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413.)

II. FAA

The FAA (9 U.S.C. §§ 1-14) governs contractual arbitration in written contracts involving interstate or foreign commerce or maritime transactions. (9 U.S.C. §§ 1, 2.) “The ‘principal purpose’ of the FAA is to ‘ensur[e] that private arbitration agreements are enforced according to their terms.’ ” (*Lacayo v. Catalina Restaurant Group Inc.* (2019) 38 Cal.App.5th 244, 257 [citing *AT&T Mobility LLC v. Concepcion* (2011) 563 U.S. 333, 344].) The FAA governs arbitration in written contracts involving interstate commerce, and provides that arbitration agreements are valid, irrevocable, and unenforceable unless there are grounds that exist at law or in equity for the revocation of any contract. (9 USC § 2; *Rittmann v. Amazon.com, Inc.* (9th Cir. 2020) 971 F.3d 904, 909.) The FAA embodies a strong federal policy favoring arbitration. To assure uniform results as to arbitrability of disputes subject to the Act, conflicting state law is preempted under the Supremacy Clause. (*Southland v. Corp. v. Keating* (1984) 465 U.S. 1, 12.) The party claiming that the contract involves interstate commerce and the FAA preempts state law has the burden of proving that the underlying transaction involved interstate commerce. (*Woolfs v. Sup. Ct.* (2005) 127 Cal.App.4th 197, 211-214.) Importantly, the FAA applies when an arbitration agreement expressly states that it is governed by the FAA. (*Aviation Data, Inc. v. Am. Express Travel Related Servs. Co., Inc.* (2007) 152 Cal.App.4th 1522, 1534-1535; *Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 355.)

The arbitration agreement here expressly states, “this Agreement relates to the Resident’s admission to the Facility, and the Facility, among other things, participates in the Medicare and/or Medi-Cal programs and/or procures supplies from out of state vendors, the parties agree that the underlying admission to the Facility involves interstate commerce.” (Kang Decl., Exh. A, Art. VI, § 7.1, p. 3.) It also states, “the parties agree that this Agreement is to be governed by the Federal Arbitration Act (9

U.S.C. §§1-16) and the procedural rules set forth in the Federal Arbitration Act shall govern any and all arbitration proceedings, including any petition to compel arbitration.” (Kang Decl., Exh. A, Art. VI, § 7.2, p. 3.) In opposition, Plaintiffs dispute this by arguing the language is boilerplate and conclusory and irrelevant until a valid agreement is established.

Both the FAA and the California Arbitration Act (“CAA”) require the existence of a valid arbitration agreement, before arbitration can be compelled. (See 9 U.S.C. § 2; Code Civ. Pro., § 1281.2.) “In California, [g]eneral principles of contract law determine whether the parties have entered a binding agreement to arbitrate.” (*Theresa D. v. MBK Senior Living, LLC* (2021) 73 Cal.App.5th 18, 24.) Indeed, even where the FAA applies, “[i]n determining the rights of parties to enforce an arbitration agreement . . . courts apply state contract law. . . .” (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236.) Thus, we turn to whether an agreement exists.

III. Existence of Agreement

Under both federal and state statute, the threshold question when presented with a petition to compel arbitration is whether there is an agreement to arbitrate. (*Cheng-Canindin v. Renaissance Hotel Associates* (1996) 50 Cal.App.4th 676, 683.)

CCRC met its initial burden of a valid arbitration agreement with Lenore by submitting the declaration from Kailyn Kang, the Admissions Assistant at CCRC. She was familiar with the maintenance of records maintained in the ordinary course of business at the facility. During the admissions process, Leonore executed the arbitration agreement. (Kang Decl., at ¶¶ 6-8, Exh. A.)

The burden then shifts to the opposing party to demonstrate the falsity of the purported agreement. (*Condee v. Longwood Mgmt. Corp.* (2001) 88 Cal.App.4th 215, 218-19.) In opposition, Plaintiffs do not dispute the existence of the agreement. Instead, they argue CCRC did not establish Lenore knowingly and voluntarily assented to arbitration or that any individual signed the agreement. These assertions, while not explicit denials of signature, challenge formation based on Lenore’s asserted lack of capacity grounds and that Plaintiffs individually are not signatories.

A. Capacity

Lack of mental capacity to enter into the contract is a defense to enforcement of the arbitration clause. (Civ. Code, § 1556 [persons of unsound mind incapable of contracting].) Agreements made by a person of unsound mind may be void or voidable. (Civ. Code, §§ 38-40.) The Probate Code establishes evidentiary requirements relating to judicial determinations of capacity, including the capacity to contract. (Prob. Code, § 812.) A determination that a person is of unsound mind or lacks the capacity to contract must be supported by evidence of a deficiency in at least one of four specified mental functions, and evidence of a correlation between the deficit or deficits and the decision or acts in question: 1) alertness and attention (i.e., level of arousal or consciousness,

orientation to time, place, person and situation, ability to attend and concentrate); 2) information processing (i.e., short and long term memory, ability to understand or communicate with others, either verbally or otherwise, recognition of familiar objects and familiar persons, ability to understand and appreciate quantities, ability to reason using abstract concepts, ability to plan, organize and carry out actions, ability to reason logically); 3) thought processes (i.e., deficits include severely organized thinking, hallucinations, delusions, uncontrollable, repetitive or intrusive thoughts); and 4) ability to modulate mood and effect (i.e., deficits include persistent or pervasive state of euphoria, anger, anxiety, fear, panic, depression, hopelessness or despair, helplessness, apathy or indifference that is inappropriate in degree to the individual's circumstances). (Prob. Code, § 811(a)(1)-(4).)

The only evidence of Lenore's alleged incapacity to contract is the declaration from Plaintiffs' counsel, Steven C. Peck. He attaches medical records which he concludes "clearly demonstrate" incapacity and an inability to manage her affairs. However, in reviewing the medical records attached, as CCRC argues, they do not establish a cognitive deficit affecting Lenore's ability to understand the Agreement. Rather, it reveals a diagnosis of insomnia for which she was prescribed Ambien. (Peck Decl., Exh. 9.) This evidence is simply not compelling. Accordingly, the argument that Lenore was unable to enter into a valid contract is unavailing.

B. Parties to Agreement

Plaintiffs also argue arbitration cannot be compelled because CCRC improperly seeks to compel their wrongful death claim and they did not enter into the agreement. They are correct.

A cause of action for wrongful death generally belongs to qualifying heirs and persons specified in Code of Civil Procedure section 377.60, and not to the decedent. (*Wilson v. John Crane, Inc.* (2000) 81 Cal.App.4th 847, 860.) "As a general rule, plaintiffs cannot be compelled to arbitrate their disputes if they have not previously agreed to arbitration." (*Holland v. Silverscreen Healthcare, Inc.* (2025) 18 Cal.5th 364, 370.) An exception to this rule is for certain wrongful death claims based on medical malpractice. If a patient agrees to arbitrate medical malpractice disputes in compliance with the arbitration provision of the Medical Injury Compensation Reform Act (C.C.P., § 1295), the patient-provider agreement may bind the patient's heirs in a wrongful death action, even if the heirs themselves never agreed to arbitration. (*Ruiz v. Podolsky* (2010) 50 Cal.4th 838, 849-850.) However, as explained recently by the California Supreme Court in *Holland v. Silverscreen Healthcare, Inc.*, this exception does not apply to a wrongful death claim based upon neglect as defined by the Elder Abuse Act (Welf. & Inst. Code, § 15610.57, subd. (a)(1)). (*Holland, supra*, 18 Cal.5th at pp. 382-383.) "The critical question remains whether the complaint alleges negligent acts or omissions by 'health care providers in their capacity as providers' rather than 'against custodians and caregivers . . . that may or may not, incidentally, also be health care providers.'" (*Id.* at p. 382.)

Here, the wrongful death claim does not appear to be based on a claim for medical malpractice. (Comp., at ¶¶ 69-75; see *Covenant Care, Inc. v. Superior Court* (2004) 32 Cal.4th 771, 783.) Because Plaintiffs did not agree to arbitration for her wrongful death claim, they cannot be compelled to arbitration. (*Holland, supra*, 18 Cal. 5th at pp. 383-384.) Defendant concedes as much in reply. (Reply, 2:13-17.) **As a result, the motion to compel arbitration is denied as to the wrongful death cause of action. However, the first through third causes of action for (1) dependent adult abuse, (2) negligence and (3) violation of residents' rights are survival claims for injuries to Lenore.** These causes of action survive Lenore's death. (C.C.P., § 377.30.) These claims are encompassed within the arbitration agreement executed by Lenore and subject to arbitration. (Kang Decl., Exh. A, at §§ 2.1, 3.1.) **The motion to compel arbitration is granted as to the survival claims against CCRC.**

IV. Delegation

"[C]ourts presume that the parties intend courts, not arbitrators, to decide disputes about 'arbitrability,' ... such as 'whether the parties are bound by a given arbitration clause,' or 'whether an arbitration clause in a concededly binding contract applies to a particular type of controversy.'" (*BG Group, PLC v. Republic of Argentina* (2014) 572 U.S. 25, 34 [citation omitted].) However, "parties can agree to arbitrate 'gateway' questions of 'arbitrability,' such as whether the parties have agreed to arbitrate or whether their agreement covers a particular controversy." (*Rent-A-Center, West, Inc. v. Jackson* (2010) 561 U.S. 63, 68-69.)

"There are two prerequisites for a delegation clause to be effective. First, the language of the clause must be clear and unmistakable. [Citation.] Second, the delegation must not be revocable under state contract defenses such as fraud, duress, or unconscionability." (*Tiri v. Lucky Chances, Inc.* (2014) 226 Cal.App.4th 231, 242.) The "clear and unmistakable" test reflects a "heightened standard of proof" that reverses the typical presumption in favor of the arbitration of disputes. (*Aanderud v. Superior Court* (2017) 13 Cal.App.5th 880, 892.)

In *Aanderud*, the appellate court held that the language of the arbitration agreement's delegation clause, which stated that the parties "agree to arbitrate all disputes, claims and controversies arising out of or relating to ... (iv) the interpretation, validity, or enforceability of this Agreement, including the determination of the scope or applicability of this Section 5 [the "Arbitration of Disputes" section]...", was sufficient to "delegate[] to the arbitrator questions of arbitrability and is clear and unmistakable evidence that the parties intended to arbitrate arbitrability." (*Aanderud, supra*, 13 Cal.App.5th at 892.) Although the *Aanderud* plaintiffs argued that the delegation clause was "substantively unconscionable because they cannot afford to pay the arbitration costs associated with having the arbitrator decide enforceability," the court found that the agreement addressed the costs of arbitration and further noted that it incorporated the rules of JAMS, the selected arbitration forum, which had a policy on consumer arbitrations that limited the consumer's fees. (*Id.* at 895-896.) The defendant did not dispute that it was required to pay all fees and costs associated with the arbitration in light of this provision.

(*Id.* at 896.) Accordingly, the appellate court affirmed the trial court's order compelling arbitration, but "vacate[d] the portions in which the trial court made findings that are reserved for the arbitrator," including "that the arbitration provision was not procedurally or substantively unconscionable, all of the Aanderuds' claims were arbitrable, and the class claims should be dismissed." (*Id.* at 897.)

Here, the Agreement's delegation clause provides:

4.1 The arbitrator, and not any federal, state, or local court or agency, shall resolve all disputes, including without limitation, any disputes regarding the making, execution, enforceability, voidability, revocability, unconscionability, severability, scope, arbitrability, interpretation, waiver, duress, preemption or any other defense to the validity or enforceability of this Arbitration Agreement, as well as resolve the Parties' underlying disputes, as it is the Parties' intent to completely avoid the court system and resolve disputes without any judge or jury.

(Kang Decl., Exh. A, ¶ 4.1.)

Similar to *Aanderud*, the Agreement's delegation clause contains clear and unmistakable language the parties intended to cover all disputes related to the Arbitration Agreement and "completely avoid the court system and resolve disputes without any judge or jury." (*Id.*) Plaintiffs do not specifically challenge the validity of the delegation clause, but merely assert Lenore lacked capacity along with bullet points of why the agreement is unconscionable. Plaintiffs' lack of a specific challenge means that the Agreement's delegation clause remains valid.

Accordingly, the evidence shows the delegation clause is enforceable and reflects the original parties' intent to delegate all issues regarding the Agreement, including making, execution, enforceability, voidability, revocability, unconscionability, severability, scope, arbitrability, interpretation, waiver, duress, preemption or any other defense to the arbitrator.

The motion is granted in part, denied in part. Plaintiffs are ordered to arbitrate the first three causes of action against moving Defendant. The remainder of this action is stayed pending final resolution of the arbitration. (Code Civ. Pro., § 1281.4; 9 U.S.C. § 3.)

All proceedings are taken off calendar pending completion of arbitration, and this civil case is stayed pending arbitration. A hearing re: completion of arbitration is set for May 5, 2027, at 8:30 a.m. , in Department 5.

Moving party is ordered to give notice.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2600306	ORELLANA VS EDGAR LADISLAO BRACAMONTE PORTILLO	DEMURRER ON COMPLAINT FOR AUTO (OVER \$35,000) OF EFRAIN ORELLANA AS TO CAUSE(S) OF ACTION ENTIRE ACTION BASED ON STATUTE OF LIMITATIONS

Tentative Ruling:

The meet-and-confer requirement has been met.

Plaintiff appears to assert that evidence exists that Plaintiff submitted the complaint in November, not January 5, 2026. The court had previously denied Plaintiff's motion to nunc pro tunc and deem the complaint filed as of November 15, 2025. However, the denial was without prejudice. The hearing is continued to October 6, 2026, at 8:30 a.m. to allow Plaintiff to bring another motion nunc pro tunc to provide evidence that Plaintiff submitted the complaint to the court in November.

Moving party is ordered to give notice.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2600721	GEORGE VS DOORDASH, INC.	MOTION TO STRIKE COMPLAINT ON 1ST AMENDED COMPLAINT

Tentative Ruling:

The meet-and-confer requirement has been met.

The court may strike any irrelevant, false, or improper matter inserted in any pleading; or, strike all or any part of any pleading not drawn or filed in conformity with the laws of this state. (Code Civ. Proc., §§ 435, subd. (b)(1), 436.)

A motion to strike is the proper vehicle to attack a claim for punitive damages. (Code Civ. Proc., §§ 435-436; *Turman v. Turning Point of Central Calif., Inc.* (2010) 191 Cal.App.4th 53, 63.) To set forth a claim for punitive damages, Plaintiff must allege ultimate facts showing oppression, fraud or malice. (Civil Code § 3294.) Mere negligence, even gross negligence, is not sufficient to justify an award of punitive damages. (*Ebaugh v. Rabkin* (1972) 22 Cal.App.3d 891, 894-895; *Moody v. McDonald* (1854) 4 Cal. 297, 299.) The current definitions of "malice" and "oppression" were changed by the 1987 amendments to Civil Code §3294, to incorporate "despicable conduct." The amendments narrowed the definitions so that punitive damages will only be awarded to punish conduct that is so "vile, base, contemptible, miserable, wretched, or loathsome that it would be looked down on and despised by ordinary decent people."

(*Butte Fire Cases* (2018) 24 Cal.App.5th 1150, 1159; *Mock v. Michigan Millers Mutual Ins. Co.* (1992) 4 Cal.App.4th 306, 331.)

The FAC alleges Herrera drove at an “unsafe speed,” “while distracted by the use of an application,” that “caused him to take his eyes completely off the roadway thereby preventing him from ever seeing” Decedent, and then continued driving “to complete deliveries.” (FAC, ¶¶ 11, 16-18, 33-35.) Here, these allegations describe alleged negligence and a statutory violation, but they do not allege particular facts showing how Herrera knew he had actually struck a person, deliberately continued driving despite that knowledge, or otherwise acted with the requisite conscious disregard. Critically, the allegation that he left “because he was too distracted and inattentive to realize that he had struck a pedestrian” undermines the inference that Herrera has actual knowledge that he had struck a person. (FAC, ¶ 16(e).) The allegations that Herrera drove “distracted” do not describe the kind of “vile, base, contemptible, miserable, wretched, or loathsome” behavior required to be “despicable.” Further, “[f]ailure to stop and render aid constitutes negligence as a matter of law, in the absence of a legally sufficient excuse or justification.” (*Brooks v. E.J. Willig Truck Transportation Company* (1953) 40 Cal.2d 669, 679.) Therefore, the alleged facts are insufficient to state a claim for punitive damages. **The Court therefore strikes the present punitive allegations against Herrera with ten (10) days leave to amend. Plaintiff is ordered to file and serve the Second Amended Complaint within ten (10) days. Thereafter, Defendant DoorDash is ordered to file and serve its answer or other pleading within ten (10) days. Moving party is ordered to submit a proposed order consistent with this ruling by no later than August 5, 2026, by 5:00 p.m.**

A corporate entity is liable for punitive damages based on the acts of an employee only if: (1) the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others; or (2) the employer authorized or ratified the wrongful act of the employee; or (3) the employer was itself guilty of oppression, fraud, or malice. (Civ. Code § 3294(b).) The advance knowledge, ratification, or act of oppression, fraud, or malice must be on the part of an “officer, director, or managing agent of the corporation.” (*Ibid.*) Here, the FAC pleads that DoorDash’s officers, directors, or managing agents knew its application and delivery demands caused distracted driving and made collisions “virtually certain.” (FAC, ¶¶ 21-24.) It alleges these corporate agents knew Herrera was unfit and incompetent to drive a vehicle on DoorDash’s behalf because he would drive at unsafe speeds, engage in distracted driving, and operate without adequate prior safety training, yet still authorized him to make deliveries on the date of the collision. (*Id.*, ¶¶ 22-24.) It further alleges that DoorDash’s officers, directors, or managing agents intentionally permitted and/or directed Herrera to prioritize delivery schedules over public safety. (*Id.*, ¶ 37.) Read as a whole and accepted as true, these allegations are sufficient at the pleading stage. **The motion to strike is denied as to DoorDash.**